

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED**

2260 N Street, Merced
627 W. 21st Street, Merced
1159 G Street, Los Banos

Wednesday, June 17, 2026

Tentative rulings are provided for the following courtrooms and assigned Judicial Officers with scheduled civil matters:

Courtroom 8 – Hon. Stephanie L. Jamieson

Courtroom 9 – Commissioner David Foster

Courtroom 12 – Hon. Jennifer O. Trimble

Parties who wish to appear remotely must contact the clerk of the court at (209) 725-4111 to seek permission and arrange for a remote appearance.

IMPORTANT: Court reporters will NOT be provided; parties must make their own arrangements. Electronic recording is available in certain courtrooms and may only be activated upon request.

The tentative rulings for specific calendars follow:

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Wednesday, June 17, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-05166	Marie Boyer vs Merced City Tow Service, Inc et al.
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Trial Setting Conference

Appearance required.

25CV-01878	William Mooneyham., et al. vs Steve Mooneyham., et al.
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Demurrer

Defendants' general demurrer to Plaintiffs' third amended complaint is OVERRULED.

On demurrer, the court permits less particularity where the material facts lie more in the knowledge of the defendant, so long as the complaint alleges ultimate facts supporting each element and gives fair notice.

Defendants' demurrer to the first cause of action is OVERRULED.

Here, the third amended complaint pleads the core statutory elements of financial elder abuse. Accordingly, the Plaintiffs allege sufficient facts to constitute a cause of action for financial elder abuse regarding real property.

Defendants' demurrer to the second cause of action is **OVERRULED**.

As with the first cause of action, the second cause of action pleads the core statutory elements of financial elder abuse. Accordingly, the Plaintiffs allege sufficient facts to constitute a cause of action for financial elder abuse regarding personal property.

Defendants' demurrer to the third cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for breach of fiduciary duty.

Defendants' demurrer to the fourth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for constructive fraud.

Defendants' demurrer to the fifth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for conversion.

Defendants' demurrer to the sixth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for quiet title.

Defendants' demurrer to the seventh cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for unjust enrichment.

Defendants' demurrer to the eighth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for accounting of the trust.

Defendants' demurrer to the ninth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for breach of the trust agreement.

Defendants' demurrer to the tenth cause of action is **OVERRULED**.

The Plaintiffs allege sufficient facts to constitute a cause of action for surcharge of trustee.

CONTINUED to March 8, 2027, at 10:00 a.m. in Courtroom 8. Proof of service of the summons and complaint on the previously unserved defendant, Christavius Montez Robinson, Jr. was filed June 3, 2026. The defendant has yet to answer the complaint.

Order to Show Cause Re: Sanctions

VACATED. The Court finds GOOD CAUSE NOT TO ORDER SANCTIONS based on the declaration submitted on May 19, 2026, by attorney Lawrence Niermeyer.

26CV-02395 Petition of: Anthony Borba

Order to Show Cause Re: Name Change

Appearance required. Proof of publication of the petition by an adult to change his own name was filed June 1, 2026. Absent legal grounds to deny the petition or valid objection at the time of the hearing, the petition will be GRANTED.

26CV-02848 Marco Estrada vs Luis Soto

Order to Show Cause Re: Restraining Order

Appearance required. No proof of service of the notice of hearing on Respondent has been filed with the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 17, 2026
10:00 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

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Case No.	Title / Description
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23CV-02672	TD Bank USA, N.A. vs. Patricia Hernandez
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Order Show Cause Re: Dismissal – Notice of Settlement

Appearance required. On September 26, 2023, Plaintiff filed a Stipulation Agreement indicating conditional settlement with the final payment due approximately March 2026. No request for dismissal has been filed. If no party appears to request more time to complete the settlement, the Court will dismiss the action pursuant to rule 3.1385(c)(2) of the California Rule of Court.

25CV-01716	Wells Fargo Bank, N.A. vs. Vanessa Casorla
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Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Wells Fargo Bank, N.A. is GRANTED without leave to amend the answer. The Court takes judicial notice of its order filed April 8, 2026, granting Plaintiff's motion for an order deeming true requests for admission that were propounded to defendant Vanessa Casorla. The Court finds that the complaint states facts sufficient to constitute causes of action for breach of written contract and breach of an implied in fact contract against Defendant and that

Defendant's deemed admissions negate the denials and defenses asserted in Defendant's answer. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549.)

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant.

The Court will sign the proposed order and proposed judgment submitted with the moving papers.

25CV-04338 Merco Credit Union vs. Valeria Marin

Claim of Exemption – Valeria Marin

Appearance required for the judgment debtor. The Court notes that a copy of the judgment debtor's claim of exemption has not been submitted to the court by the levying officer.

25CV-04928 JPMorgan Chase Bank, N.A. vs. Lorena A. Anderson

Motion for Order Deeming Admitted Requests for Admission

Plaintiff's unopposed motion for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Lorena A. Anderson is GRANTED. It is undisputed that Defendant has not served a response to Plaintiff's requests for admission. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers. The Court confirms the case management conference scheduled for August 7, 2026, at 8:30 a.m. in Courtroom 9.

25CV-04947 Wells Fargo Bank, N.A. vs. Sandra Baker

Motion for Summary Judgment

The unopposed motion for summary judgment by plaintiff Wells Fargo Bank, N.A. is GRANTED. Upon consideration of all the evidence set forth in the papers, including some of Defendant's responses to Plaintiff's requests for admission and the declaration of plaintiff's Loan Workout Specialist Jason Gil authenticating business records supporting Plaintiff's undisputed material facts, the Court finds that there is no triable issue of material fact and Plaintiff is entitled to judgment as a matter of law. Plaintiff has proven each element of its causes of action for breach of written contract and breach of an implied in fact contract, including the principal amount of the debt. The burden therefore shifts to Defendant to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(1).) By not opposing the motion, Defendant has failed to meet her burden.

Judgment shall be entered for Plaintiff and against Defendant Sandra Baker. The Court will sign the proposed order lodged with the moving papers. Plaintiff is entitled to recover reasonable attorney's fees and costs according to proof in accordance with rule 3.1702 of the California Rules of Court and Civil Code section 1717. Plaintiff is ordered to prepare a proposed judgment, submit a cost memorandum and submit a declaration in support of any motion for reasonable attorney's fees.

The case management conference scheduled for September 4, 2026, is vacated.

25CV-06092

JPMorgan Chase Bank, N.A. vs. Valerie Vargas

Motion for Order Deeming Admitted Requests for Admission

Plaintiff's unopposed motion for an order deeming admitted the truth of any matters specified in plaintiff's Requests for Admission, Set One, served on defendant Valerie Vargas is GRANTED. It is undisputed that Defendant has not served a response to Plaintiff's requests for admission. The Court notes that Plaintiff has not requested monetary sanctions.

The Court will sign the proposed order submitted with the moving papers.

Case Management Conference

Appearance required.

25CV-06765

Wells Fargo Bank, N.A. vs. Edgar Centeno Aceves

Motion for Judgment on the Pleadings

The unopposed motion for judgment on the pleadings by plaintiff Wells Fargo Bank, N.A. is GRANTED without leave to amend the answer. The Court takes judicial notice of its order filed April 16, 2026, granting Plaintiff's motion for an order deeming true requests for admission that were propounded to defendant Edgar Centeno Aceves. The Court finds that the complaint states facts sufficient to constitute a cause of action for breach of contract against Defendant and that Defendant's deemed admissions negate the denials and defenses asserted in Defendant's answer. (See *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549.)

Judgment shall be entered forthwith in favor of Plaintiff and against Defendant.

The Court will sign the proposed order and proposed judgment submitted with the moving papers.

26CV-02038 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-02141 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

26CV-02302 [Parties' names withheld pursuant to CCP § 1161.2(a)(1)]

Court Trial: Unlawful Detainer

Appearance required.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Limited Civil Long Cause Trial Calendar
Judge Pro Tem Peter MacLaren
Courtroom 9

627 W. 21st Street, Merced

Wednesday, June 17, 2026
1:30 p.m.

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Case No.	Title / Description
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22CV-02242	Discover Bank vs. Yasmin Padilla
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Court Trial

Appearance required.

24CV-05674	JPMorgan Chase Bank, N.A. vs. Sara Soto
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Court Trial

Appearance required.

25CV-03301	Midland Credit Management, Inc. vs. Gurbinder Singh
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Court Trial

Appearance required.